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REVIEW ARTICLE

English Law 1820–1914: A Review of Volumes 11–13 of the *Oxford History of the Laws of England*

EDITED BY CHARLES MITCHELL AND
CHARLOTTE SMITH

I. INTRODUCTION

The last three volumes of the *Oxford History of the Laws of England*¹ cover the period from 1820 to 1914. They are a magnificent achievement. The authors' research into the primary sources has been extraordinarily broad and deep, and accompanied by wide reading in the secondary literature. They have synthesised all this work into more than 3000 pages of densely referenced material, packed with insightful observations that reflect a deep knowledge and understanding of the law and legal change during their period. Their work will be an essential resource not only for legal historians but also for the wider community of scholars working on the social, political, religious and intellectual history of the nineteenth century. This multi-authored review article will give an overview of the three volumes, and then assess each of their main parts in turn.

II. OVERVIEW

1. *Subject-matter*

As one might expect, the volumes contain extensive discussion of the evolving body of rules disclosed by formal legal sources, but the authors are well aware that this version of the law frequently differed from the law as it was understood and experienced in practice, and they have sought to portray this, too, at least to the extent that it can be captured from the available sources. Thus, we find Stuart Anderson making deft use of practitioners' books and parliamentary reports to capture the realities of

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¹ William Cornish, J. Stuart Anderson, Ray Cocks, Michael Lobban, Patrick Polden and Keith Smith, *Oxford History of the Laws of England*, vols. 11, 12, and 13, 1820–1914, Oxford, 2010.

conveyancing practice and the drafting of wills and family settlements;² William Cornish discussing the drafting of patent specifications³ and the uses made of patents,⁴ and elsewhere deploying statistics on employers' use of criminal penalties against recalcitrant employees;⁵ Michael Lobban giving some intriguing examples of insurers forgoing their legal rights to establish a reputation for generosity in the market;⁶ and Keith Smith drawing on a wide range of sources to explore the use made in criminal trials of confessions to the police,⁷ and to discuss the ultimately elusive phenomenon of jury mitigation.⁸

'Law in action' is harder to discover than 'law in the books', but from a modern-day perspective it is strikingly hard to capture even the substantive legal doctrine of the mid-nineteenth century. Indeed, in relation to some areas of legal practice the question arises whether this is a particularly useful exercise, given the limited role that this abstract construct played in the thinking of judges and practitioners. For such a construct to be practically meaningful requires the courts to have developed rules of precedent and *stare decisis*. Yet, as Cornish explains,⁹ the rules of precedent with which we are now familiar only slowly emerged during the course of the century, in a process characterised by Patrick Polden as a 'gradual retreat from the boldness, and sometimes dogmatism, of some High Victorian judges into a substantive formalism which treated the common law as a "self-contained objective system of rules"'.¹⁰ Prior to the Judicature Acts, the difficulties of identifying the rules of private law are further complicated by the number of courts, lucidly described by Polden;¹¹ and in criminal law, as portrayed by Smith,¹² the slow development of the rules of precedent, and the poor quality of law reports, also make it difficult to extract statements of substantive principle from the reported cases, a problem exacerbated by shortcomings in judicial reasoning and the judges' preference for pragmatic decision-making and resort to moral justifications.

2. *Interpretative approach*

If the work of legal historians is to describe and explain the law as an evolving body of ideas, then the dynamic structure of these changes is obviously of central concern. When explaining legal development, several interpretative approaches are possible. One takes legal change to be a largely autonomous phenomenon that is driven by the internal logic of legal rules; another takes law to be a functional response to economic, political, religious, or social pressures; a third partakes of the other two, but also

²Vol.12, 3–12, 18–22, 79–94.

³Vol.13, 949–950, 964–967.

⁴Vol.13, 972–977.

⁵Vol.13, 646–649.

⁶Vol.12, pt 3, ch.2; specifically at 680 – payment on ppi policies; at 691 – no objection made to the assignment of life policies; at 711 – return of premiums paid on life policies avoided for non-disclosure; at 727 – variable attitudes to payment following death by suicide of life assured.

⁷Vol.13, 94–100.

⁸Vol.13, 117–120.

⁹Vol.11 pt 1, ch.3.

¹⁰Vol.11, 546, quoting Robert Stevens, *The Independence of the Judiciary*, Oxford, 1993, 22.

¹¹Vol.11, pt 3.

¹²Vol.13, 180–187.

views law as a contingent response to the exigencies of time and place, turning on particular interest group struggles, personalities and disasters.¹³

At the outset the authors define their project as a search for explanations of legal change in the political, economic, social and religious developments of the period,¹⁴ and consider these developments in a series of essays that are written by way of introductions to the accounts of the law that follow.¹⁵ In these later parts, however, some differences of outlook seem to emerge, as some authors emphasise the links between extra-legal and legal developments, while others express some scepticism as to whether extra-legal changes can be directly mapped onto legal developments: for example, in volume 12 Michael Lobban doubts¹⁶ that the Limited Liability Act 1855 and mid-century reforms of the law of bankruptcy can be clearly attributed to the moral shifts associated with the rise of Evangelicalism that are described by Keith Smith in volume 11.¹⁷

3. *Ideology*

Writing in 1905, Dicey famously espoused the view that ‘in 1830 legislative inertia came with apparent suddenness to an end’, as the Reform Act ushered in an age of Benthamite reform that saw power transferred from the aristocracy to the middle class, the law humanised, and individual liberties extended to an ever-expanding group of citizens.¹⁸ The authors of these volumes follow more recent historians in rejecting various parts of this picture (though they have little time for the work of Marxist historians and critical legal theorists when framing their own point of view¹⁹). The story told here is of reform that was sometimes initiated by those in political authority, but was more often driven by heroic individuals and right-thinking groups who identified social evils and campaigned for change, with greater or lesser success according to the circumstances of the time. The legislation of the 1840s was not followed by a sustained programme of reform, as respect for local autonomy and dislike of taxation inhibited state intervention and, prior to the financial difficulties of the 1870s and 1880s, national solutions to social problems seemed achievable through the work of local government agencies and voluntary associations.

This picture emerges most clearly from Ray Cocks’s account of Victorian social reforming legislation,²⁰ which he tells as a story of successive failures and restarts. However, it is a theme replicated in all the authors’ work as they describe the

¹³Ron Harris, *Industrializing English Law: entrepreneurship and business organisation 1720–1844*, Cambridge, 2000, 3–9, critiqued in P. Ireland, ‘History, Critical Legal Studies and the Mysterious Disappearance of Capitalism’, 65 *Modern Law Review* (2002), 120. See too Ron Harris, ‘The Encounters of Economic History and Legal History’, 21 *Law and History Review* (2003), 297; Joshua Getzler, *A History of Water Rights at Common Law*, Oxford, 2004, 3–6.

¹⁴Vol.11, lix.

¹⁵In vol.11, pt 1.

¹⁶Vol.12, 780.

¹⁷Vol.11, ch.5.

¹⁸A.V. Dicey, *Lectures on the Relation between Law and Public Opinion during the Nineteenth Century*, London, 1905, 110.

¹⁹See, e.g., vol.13, 147, n.41, where Keith Smith rejects Thompson and Hay’s theories of the origins and functions of eighteenth-century penal legislation.

²⁰Vol.13, pt 2.

stuttering tempo of legal developments. Looking back, we can see that the period was characterised by radical changes to court structure, practice and procedure, by major changes to the substantive rules of criminal and private law, and by the introduction of significant social welfare reforms. But as the authors observe, the undoubted impetus for change was accompanied by a 'drag effect' as vested interests and the forces of inertia slowed down the pace of change.²¹ Notable examples are reform of the law of perpetuities, recommended by the Real Property Commissioners in 1832 but not finally implemented until 1964;²² the decades that elapsed before the private prosecution system was reformed;²³ the thwarting of efforts to interfere in the internal affairs of mismanaged charities in the 1840s;²⁴ the years of campaigning that it took to secure the criminalisation of incest, and the raising of the age of sexual consent for women from 12, to 13 in 1875, and to 16 in 1885;²⁵ the long gestation and ultimate failure of the criminal law codification project;²⁶ and the long political struggle that only gradually led to extension of the franchise to the middle and working classes in 1832, 1867 and 1884–85, and to (some) women in 1918.²⁷

4. *Organisation of the text*

The authors sometimes diverge in the way that they decide where to locate particular topics within the text. Some placements reflect the author's decision that his account should reflect the thinking of lawyers at the time – for example, Lobban's decision to place the law of 'restitutionary remedies' inside contract law (although this makes it awkward for him to discuss accounts of profits awarded against defaulting fiduciaries in the same chapter). Others are made with a view to shaping an argument from the perspective of the present-day. Examples are the inclusion of charitable trusts within Cocks's section on social reform (rather than the chapter on trusts), the inclusion of public authority liability in tort in Anderson's section on public law (rather than the section on tort), and most strikingly the inclusion of defamation, not in the section on tort, but in Cornish's section on personality rights and intellectual property, a decision that has more coherence now (after the emergence of a tort of privacy) than it would have had to a nineteenth-century lawyer.

5. *Scope of coverage*

There is an abundance of material in these volumes, but additional discussion of some matters would have been welcome. Various aspects of agency doctrine are touched on in volume 12, but there is no systematic coverage of the subject; little is said about arbitration;²⁸ nor is there anything on shipping law;²⁹ constructive and resulting

²¹Vol.11, lviii.

²²Vol.12, 48.

²³Vol.13, 63–70.

²⁴Vol.13, 513.

²⁵Vol.13, 408, 405–406.

²⁶Vol.13, 180–216.

²⁷Mentioned, but hardly discussed in any detail, in vol.11, 14–15.

²⁸But see vol.11, 774–775, 810, 829.

²⁹Though the Admiralty court is discussed in vol.11 at 714–732, and the law of marine insurance throughout vol.12, pt 3, ch.2.

trusts are hardly mentioned, a surprising oversight in the otherwise excellent chapter on trusts;³⁰ the law of taxation is considered in broad policy terms in volume 11, but more is needed on the substantive detail;³¹ discussion of the law of damages is dispersed through the sections on contract and tort but little is said about equitable remedies – injunctions, specific performance, equitable accounting; a stand-alone treatment of associations would also have been welcome, examining their legal status and relations with outsiders, and the extent to which the courts would intervene in their internal affairs – reading the accounts here of companies and trade unions³² it is striking how differently these bodies were treated by the judges.

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III. PUBLIC LAW

Even our first glance at Stuart Anderson's chapters on public law reminds us of one of the most fundamental truths of legal historical research; namely, that the taxonomy of law changes over time. Public law is no exception, and its basic parameters and core ingredients have evolved to mirror changing conceptions of the state and of the balance between parliament and the judiciary as overseers of governmental actions and powers. So, in a treatment of nineteenth-century public law it was undoubtedly necessary to address the law relating to the Church³³ and the army,³⁴ and to deal at length with private bill procedure,³⁵ despite their relative insignificance in modern constitutional law. These chapters also, though, remind us that, when legal historians seek to address their work to the interests and concerns of a wider constituency of lawyers, they may, as has been noted above, find themselves grouping legal developments in ways which would have been unfamiliar to contemporary lawyers. The presence of a separate chapter on judicial review is, as Anderson acknowledges,³⁶ a case in point.

Delving into the chapters, several key themes and points of interest emerge. The first, elucidated in detail in the chapter on parliament, concerns the extent to which the nineteenth century witnessed a transformation of the House of Commons, from the deliberative chamber which it was in the eighteenth century, to something approximating to the legislature we have today. Evolving assumptions about not only the role and functions of parliament, but also changing expectations regarding the role of central government, are traced through an exhaustive discussion of the nature and volume of, and changing procedures for securing, private and local Acts.

The struggles of the House of Commons to mould the procedures, customs and practices of a primarily deliberative chamber working with a central executive of

³⁰There is some discussion in vol.12, pt 2, ch.8, on restitutionary remedies at 602–606, which could, though, have been better aligned with the discussion at 662–663.

³¹See vol.11, 218–226.

³²In vol.12, pt 3, ch.1, and vol.13, pt 3, especially ch.3.

³³Vol.11, pt 2, ch.3.

³⁴Vol.11, pt 2, ch.4.

³⁵Vol.11, 325–441.

³⁶Vol.11, 486–487.

rather limited functions and scope, into those of an efficient legislative chamber in an era of expanding central government, highlights another central theme in Anderson's treatment of Victorian and Edwardian public law. This is the enduring tendency of the English, when reforming the constitution, to work with that which is already in existence, to maintain old institutions and ways of doing things, and to combine these with more recent innovations. Thus, for example, the House of Commons started with its historic practice when it sought to reform its internal procedures. Equally, sweeping reforms to local government left the old vestries intact until 1894, despite their evident deficiencies. The desired aims were instead secured by simply sidelining vestries, and reallocating their powers and functions to other better-suited bodies. So, too, while legislation such as the Poor Law and Public Health Acts created new administrative apparatus and bodies, more often than not their activities were overseen by holders of the venerable office of justice of the peace.³⁷

This admixture of the ancient and the innovative is a theme running through Anderson's chapter on judicial review. His account provides the reader with a commentary which highlights a common tale of fragmented and fragmentary legal development, albeit one which was to some extent underpinned by unifying assumptions about the innate values of procedural justice inherent to the common law. It also, though, tells a story of legal development secured both through evolving case law regarding the well-established jurisdiction to oversee the activities of justices of the peace, but also by the statutory creation of powers to review the activities of new statutory bodies.

While the English constitutional tendency to look to the future with one eye on the past is familiar to modern public lawyers, Anderson's chapters nevertheless provide stark proof of the peril of complacently assuming that modern values and truths are relevant to the past. To take two examples: his treatment of the constitutional and legal position of the army reminds us that, even in the nineteenth century, there were islands of activity which were virtually beyond the reach of the common law.³⁸ So, too, his account of local government reforms reminds us that, while it might be tempting to see these as representing the burgeoning of democracy, for much of the period the primary impetus for reform was administrative efficiency, rather than a concern to promote representative government.³⁹

Anderson's chapters provide us with an insightful and penetrating account of public law in the Victorian and Edwardian eras, in all its glory and complexity. If scope for criticism exists, which might be doubted, it is confined to the chapter on Church and State. This deals exclusively, and indeed intentionally, with Establishment as a legal phenomenon; the wider social and ideological issues being said to have been dealt with in Smith's earlier chapter on law and religion. The result is a chapter which, though technically correct, focuses on Establishment as something which the Church 'does' to individuals, and which the State 'does' to the Church. In consequence, Establishment as a medium through which the Church as an

³⁷Vol.11, pt 2, ch.5.

³⁸Vol.11, 407–422.

³⁹See, e.g., vol.11, 445–454.

institution continued to impact upon State actions and ideologies is rather neglected.⁴⁰ Nor is this remedied by a reading of the chapter on law and religion, since this chiefly addresses the religious motivations of prominent individuals, and concerns itself primarily with the Evangelical Movement, leaving in obscurity prominent groups such as the Oxford Movement⁴¹ and Christian Socialists,⁴² for whom the corporate mission of the Church and its relationship with the State assumed far greater significance.

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IV. THE COURTS OF LAW

Gladstone's political career straddles the most important legal institutional developments in the nineteenth century from the 1850s to the 1880s. Sadly the Grand Old Man seems to have had little interest in legal matters beyond a desire to limit judges' salaries and increase their deployment. Certainly he figures little in the story Polden has to tell and this seems just. We may however start from one of the few references to detailed institutional reform in Gladstone's diaries. He records on 3 July 1873 – at the time when the Judicature Act was progressing through the Commons – that Gathorne Hardy, the conservative politician who as Lord Cranbrook took the United Kingdom into the Second Afghan war, was proposing that appeals in ecclesiastical causes should be channelled into the new Court of Appeal and that this had the support of some members of the cabinet and of the law officers.⁴³ Nothing eventually came of this but it neatly juxtaposes two important themes running through the account Polden gives.

In the first place there is the process of consolidating and integrating the various different strands of the English judicial system into more or less one. In the 1820s, when the volume commences, there was a great diversity of courts and, more importantly, of legal traditions. It is traditional, but misleading, to regard these as 'alternatives to the common law'. Some of the traditions were at least as old if not older than the common law: the ecclesiastical court system for one. In the 1820s the church courts still did a lot of business which we would regard as secular, from overseeing marriage (there was of course no divorce in the modern sense) to probate of personal goods. There were a number of distinct local courts, some medieval survivors like the Salford Hundred Court, some the product of eighteenth-century local initiative, like

⁴⁰For an admirable discussion of this aspect of Establishment see, e.g., Frances Knight, *The Nineteenth-Century Church and English Society*, Cambridge, 1995, and also Alec R. Vidler, *The Orb and the Cross: a normative study of the relations of Church and State with reference to Gladstone's early writings*, London, 1945.

⁴¹The seminal works on this High Church movement are Owen Chadwick, *The Spirit of the Oxford Movement: Tractarian essays*, Cambridge, 1990, and Peter B. Nockles, *The Oxford Movement in Context: Anglican High Churchmanship 1760–1857*, Cambridge, 1994.

⁴²For a discussion of the genesis and activities of the Christian Socialist movement see generally H.G. Wood, *Frederick Denison Maurice*, Cambridge, 2008, and Olive J. Brose, *Frederick Denison Maurice: rebellious conformist*, Athens, OH, 1971.

⁴³H.C.G. Matthew, ed., *The Gladstone Diaries*, vol.8, *July 1871–December 1874*, Oxford, 1982.

the Birmingham Court of Requests. There were, though Polden finds no place for them, the university courts of Oxford and Cambridge. There was the court of Admiralty and the supposedly defunct Court of Chivalry. There were still three distinct courts of the common law, one of which, the Exchequer, still had an important side business in equity alongside the omnivorous court of Chancery, which in 1820 was at the height (or depth) of its Eldon period.

The corraling of ecclesiastical causes was one of the great themes of the age. No reader of Trollope or Wilkie Collins can be unaware of the passionate interest in the condition of marriage and especially of married women. Although the subordination of women in marriage was essentially a product of the common law rather than the canon law, it was of critical importance for the success of reform to wrest control of marriage from the Church and this was done in 1857 by the creation of the Divorce Court empowered to offer judicial termination of marriage. The path was paved by moves to liberalise the ecclesiastical courts' powers, not least to allow the receipt of oral evidence – not quite a mere decade after Lord Denman's Act – what Polden calls 'common law modes of evidence'.⁴⁴ The loss of the bulk of probate business to the new Probate Court at the same time effectively marginalised the ecclesiastical courts; the formerly exclusive practitioners there and in Admiralty, the advocates, were not abolished but simply died out as the common lawyers moved in. The ecclesiastical courts continued to play an important role in public life to the end of the nineteenth century through the series of prominent ritual cases; these form no significant part of Polden's story. It is at this point that Gathorne Hardy's lost proposal of 1873 is of interest. It seems to be connected with the clause in the Judicature Bill as it left the Commons which would have empowered the convocations of the Church of England to intervene in doctrinal matters whilst consolidating oversight over ecclesiastical law into the hands of the lawyers in the Court of Appeal. This would surely have led to an integration of ecclesiastical law into the modern common law as full as that experienced by Admiralty law or at least as that brought about by section 25(11) of the Judicature Act 1873 as regards law and equity. As it is, the ecclesiastical courts of the Church of England continue their slightly different way.

If the first strand of Polden's account is integration the second important strand is that of standardisation of appeals. There is clearly a close connexion between the two. It is as well to recall the impossibly confused state of civil appeals in 1820, amounting to what Polden rightly calls 'utter incoherence'.⁴⁵ It is one of the joys of teaching this topic to point out to students the need to distinguish the five sorts of court of Exchequer Chamber all exercising some sort of appellate function, though not all wholly simultaneously.

Slowly, as much by judicial activism at least after 1881 as by deliberate parliamentary provision, the Judicature Act system established in the period 1873 to 1876 produced a workable mechanism for weaving justice out of the inherited materials of equity, the common law and the other minor strands. But the system remained both slow and, in consequence, costly.

⁴⁴Vol.11, 711, n.147.

⁴⁵Vol.11, 601.

In light of Polden's earlier work,⁴⁶ it is both inevitable and appropriate that another of the central themes of Polden's story is the creation and rise of the new county courts. Long regarded by both practitioners and legal historians as a mere appendage to the central courts, Polden shows the extent to which the legislation creating the new courts in effect transformed the provision of legal remedies. Indeed it is clear that for Polden this change is the most important effected during the period, for whereas to a medievalist looking forward the alterations to the pattern of the central courts, and in the provision of appeals, look momentous, to the modern historian looking back the tendency is to stress the continuities as much as the changes between 1820 and 1914.

Space fails to speak of the courts of Great Session in Wales, the Privy Council and the House of Lords, the Prize Court (which revised its rules in August 1914), the organisation and staffing of the central courts, the law of procedure and evidence (with a lucid account of the Hilary Rules), to mention only a few of the important topics assiduously chronicled here.

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V. THE LEGAL PROFESSIONS

Patrick Polden's rich portrait of the legal profession in volume 11 can scarcely be done full justice here, as there is much to discuss and to praise. If we begin with those 'jackals and predatory pilot fish of the law', the attorneys, Polden depicts a group which grew over the course of the nineteenth century, but which did not do so without suffering some significant reverses. The century opened well, with the number of practising certificates in issue rising dramatically from about 5000 in 1800 to some 9000 in 1830. In the 1850s, however, this growth was halted and reversed with the number of attorneys in practice declining by about fourteen per cent. Health returned thereafter but there was a second and severe downturn in the numbers entering the profession between 1900 and 1913. The road to respectability was scarcely smoother than the path to prosperity. Most entrants were not graduates of course, but articled clerks qualifying after five years of a somewhat Gradgrindian existence. The stigma of being 'in a trade' was not easy to shed. By the beginning of the First World War attorneys, or rather, now, solicitors, were no longer ashamed to admit this to be their profession, but Polden's anecdote to the effect that, unlike barristers (and doctors), solicitors were not automatically given commissions in the army upon the outbreak of war is illuminating.⁴⁷

Much of the nineteenth century was spent trying to secure elbow room for the attorneys. Things again started well, with a monopoly of conveyancing after 1804, with attorneys established as both administrators of large estates and, in Polden's words, as 'the conduit between capital seeking a home and enterprises needing

⁴⁶Patrick Polden, *A History of the County Court, 1846–1971*, Cambridge, 1999.

⁴⁷Vol.11, 1112.

finance'.⁴⁸ As time progressed, however, the profession found itself displaced from many of the landed estates by new species of agents and managers. Furthermore, the fees to be garnered following the establishment of the county courts in 1846 proved barely adequate and then only for provincial firms. Under such circumstances one might have supposed it all the more important that attorneys cement their relationship with business and that they resist the rise of the accountants. Yet they failed to do so, and by the time of the Companies Acts 1856–62, they had, as Polden tells us, 'begun to lose their place as advisors to business'.⁴⁹ The constraints imposed on the authors of the *Oxford History of the Laws of England* volumes prevent a full explanation of why this was so. The role of attorneys in the promotion of speculative railway companies in the 1840s, very many of which failed, is alluded to with the rather upbeat conclusion that, 'If the railway crash left a question mark about the profession's probity it also provided confirmation of its entrepreneurial leanings'.⁵⁰ One wonders if the word 'entrepreneurial' is both euphemistic and overly generous. There would certainly be those who would argue that the reputational damage caused by the railway crash did the profession more damage than is here allowed. One gets the impression that thereafter smaller firms at least did not fight very hard to occupy commercial territory. Polden also makes it clear that the weakness in the profession can in some part be attributed to the tensions between a Law Society dominated by London firms and the provincial solicitors whose interests were often ignored.

Eager to trespass upon the interests of the attorneys and solicitors were the barristers, though C.R. Kennedy failed in his attempt to secure rights of direct access to clients in the superior courts. How many barristers were actually practising at any one time is rather difficult to ascertain, with estimates for 1885 for example ranging from 660 to 1400. What soon becomes apparent is the immense difficulty that there was in earning a living as a junior barrister. It took perhaps five years of practice to turn a profit. Small wonder that many turned to journalism to supplement their income. Entry to the profession in the first place was equally uncertain. Polden traces the tortuous process that slowly transformed 'voluntary societies not submitting to any government' into somewhat more accountable institutions prepared to countenance a modicum of formal legal education.⁵¹ As ever, it was the very particularly individualistic nature of the Bar that made collective action and innovation difficult. Yet the Bar had its successes. For example, queen's counsel were able to insist upon the presence of juniors in court by the end of the century and the Bar Council, formed in 1894, both began to develop disciplinary procedures and to cement perhaps monopolistic practices by making it an offence for a junior to accept fees lower than the prescribed minimum fee thresholds. However, if the profession was developing institutionally it was, Polden intimates, becoming less collegial as the importance of the circuit messes declined.

⁴⁸Vol.11, 1132.

⁴⁹Vol.11, 1142.

⁵⁰Vol.11, 1140.

⁵¹See *R. v Benchers of Lincoln's Inn* (1825) 4 B. & C. 855.

Turning finally to the law officers, a picture of astonishing amateurishness emerges, with confidential state papers being sent hither and thither on the railway, and the law officers deprived of even a dedicated office until 1893. Whilst the state regarded these men as Crown servants they clearly regarded themselves as independent barristers upon a retainer. It would have been interesting to learn more about why the confidentiality of law officers' opinions had still to be established by the end of the century. Many of course went on to judicial appointments in return for political service. Polden observes that purely professional achievement would seldom open up one of the great judicial offices, a large proportion of senior judges having been appointed by the favour of their own party, having sat in the House of Commons or been parliamentary candidates. Indeed, further down the scale, in 1846 the County Court Act made sixty judges of 'Men utterly unknown to the public, scarcely known even by name to the profession.'⁵² Ministries naturally wanted men who shared their views on the Bench, they wanted to secure the allegiance of rising lawyers and they wanted to reward those who had assisted them. As time went on, however, it is suggested that the first consideration became of less importance since 'Victoria's ministries were seldom engaged in contests where the judges' political views were likely to be important, until a series of controversial trade union cases with inescapable political dimensions arose.'⁵³

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VI. PROPERTY

Stuart Anderson's chapters on property offer a comprehensive coverage that both informs and excites curiosity. The work is divided into three topics: wills (chapter 1), land law (chapters 2 to 5) and trusts (chapter 6).

In his examination of wills, Anderson sets the scene. He identifies the preoccupation of landowners of this period with the settlement, sharing, management and devolution of family property. His study of the way the courts interpreted wills identifies a preoccupation of property lawyers that flavours this period and perhaps all others: a preoccupation with words and their meaning. There is of course considerable overlap between chapters 1 and 6, because both are concerned with family settlements; in chapter 6, the picture painted is of the gradual and organic evolution of trustee powers and trustee protection, with the law almost always lagging behind the needs and practical realities of the times. If the interpretation of marriage settlements is now largely a thing of the past, it is nevertheless salutary to see how much of the

⁵²Vol.11, 993, citing a description of Christopher Temple, 1 *The Jurist*, new series (1855), 75.

⁵³Vol.11, 972. At the end of the nineteenth century a series of regressive court rulings hampered the operations of trade unions. *Lyons v Wilkins* [1899] 1 Ch. 255 for example, limited the right to picket and *Taff Vale Railway Co. v Amalgamated Society of Railway Servants* [1901] AC 426 rendered a union liable for the loss of an employer's profits during strike action.

material in this chapter remains the subject of law reform today, in particular trustee investment powers⁵⁴ and trustee liability.⁵⁵

Sandwiched between those two, and intimately connected with them, we find a portrayal in chapters 2 to 5 of the great landscape of land law and its tormented evolution in the nineteenth century from a medieval system to the brink of the reforms of 1925. How that evolution happened has been charted elsewhere.⁵⁶ It is particularly useful to have this account prefaced by a chapter on 'The World of the Real Property Commissioners' who shaped so much of what happened, so slowly.

Why was it all so difficult? Anderson's unparalleled knowledge of the period enables him to offer insight into both personalities and legislative machinery. Two points stand out. One is the practical problem of getting anything through parliament. The House of Commons was generally too busy and law reform legislation often had to begin in the House of Lords.⁵⁷ It was often heavily dependent upon the tenacity of individuals. The other is a more difficult and subtle point: it is that lawyers found it almost impossible to step away from well-established structure and language. Thus '[p]iece-meal legislation courted failure because the lawyers who had to apply it would try to integrate it with the understanding of existing principle. If the fit was poor they would reject it.'⁵⁸ Anderson refers more than once to an example that encapsulates so much of the difficulty in reforming land law that it is worth repeating. The Transfer of Property Act 1844 provided that land could be conveyed by deed with the same effect as if it had been conveyed by lease and release.⁵⁹ This did not fit. It was repealed and replaced by a provision that 'all corporeal hereditaments shall, as regards the conveyance of the immediate freehold thereof, be held to lie in grant as well as livery'.⁶⁰ Clear words have become labyrinthine because of the rootedness of old concepts, and because of the law reformer's perennial bugbear, the fear of unintended consequences.

As stated above, Anderson's work inspires curiosity as well as informing. Clearly there was radical change in the course of the century, and there is more to be discovered about why it happened. The freedom given to the tenant for life in the Settled Land Act 1882 would have been unthinkable at the start of this period; there is more to say about why it happened, and about how views of family as well as of property changed in order to make it possible. There is a close link between family law and property law in this period, and real interrogation of that link and of its role in the minds of the men who made things happen is rendered impossible by the arrangement of a work such as this and the inevitable compartmentalisation of property and family law. The story of the development of the Married Women's Property Acts is deferred to the later volume; the women who made things happen are almost wholly absent, as is any analysis of the way men thought about women.

⁵⁴See both the Trustee Act 2000, and what I hope, as I write, will shortly be a Trusts (Capital and Income) Bill.

⁵⁵See the Law Commission's work on Trustee Exemption Clauses, Law Com. no.301, 2006.

⁵⁶J. Stuart Anderson, *Lawyers and the Making of English Land Law 1832–1940*, Oxford, 1992, and Avner Offer, *Property and Politics 1870–1914*, Cambridge, 1981.

⁵⁷Vol.12, 220.

⁵⁸Vol.12, 64.

⁵⁹Vol.12, 61.

⁶⁰8 & 9 Vict., c.106, s.2.

Almost as absent as the women is Mr Torrens. Did the thinking that led to the Land Transfer Act 1862, the first attempt at title registration in this jurisdiction, really take place in isolation from the contemporaneous developments in South Australia? There is room for investigation here; how much was known in London at that time about the shipping registrar turned politician, whose name is still borne by the huge family of registration statutes whose first version he drafted?

If I have a criticism, it is that the property chapters, at least, of this work are written for a narrow audience: for legal historians, who know what is a fine and recovery, and a restraint upon anticipation. It may be that that is inevitable; additional explanation takes space, and would therefore dilute the usefulness of this work as a starting point for historical researchers. But the problem is a striking one. The Victorians were themselves aware of it. Then, as now, perhaps the biggest challenge for the law reformer is to write about land law, and to restate it, in a way that people who are not lawyers can understand.

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VII. CONTRACT

Michael Lobban's history of the law of contract⁶¹ painstakingly charts developments in all key areas of the subject, giving an impressively detailed account of both case law and academic discussions.

Behind the detail, three important themes emerge. First, far greater emphasis is given to developments in equity than has previously been the case. Lobban very convincingly demonstrates that equity's readiness to investigate the conscience of the parties led it to develop principles relating to formation, estoppel, misrepresentation, undue influence and mistake, which were at odds with principles developed in the common law courts. At common law, at least until 1851, the parties' inability to give evidence in their own case made such developments impractical. As a result, in the first half of the nineteenth century there was, in effect, a separate law of contract for sales of land and family settlements (the typical subjects of contractual Chancery litigation).⁶² As the demarcation between law and equity became less rigid, culminating in the Judicature Acts 1873 and 1875, developments in contract law were driven by attempts to integrate the two systems. The partial success of those attempts can still be seen today in the continuing existence of separate doctrines of duress (common law) and undue influence (equity), both aimed at the same basic problem.

The second broad theme is the extensive influence of academic commentators, specifically (in England) the authors of treatises. As is made clear, the treatise writers' overriding purpose was not theoretical; their typical approach was very

*I write this in my personal capacity and nothing that I say here is to be read as the view of the Law Commission.

⁶¹Vol.12, pt 2.

⁶²See also the discussion in vol.12, 94–109, on sales of land.

much to accept, and make sense of, the cases.⁶³ Contemporary American authors, writing in law journals or books for students, seemed to be inclined to be more critical, and Lobban highlights how some of their exchanges with their English colleagues drove changes in later editions of the English books.⁶⁴ However, even with the American authors there was little sense of a consistent theoretical perspective, or vision of how the law should operate. The debates tended to be abstract, and rather esoteric. For instance, the continuing hunt for benefit or detriment in situations where courts had held that there was consideration (which still goes on today) demonstrated an impressive intellectual ingenuity that surely would have been (and later was) put to better use in a critical and realistic restatement of what the law really was.

The third theme is what motivated and influenced judges to change the law? One motif is the role of contract in allowing commerce to flourish – the idea being that the law should mirror the expectations of commercial people. Thus, for instance, implied quality obligations in sale of goods could be justified on the basis that commercial purchasers would understand that they were buying things of merchantable quality.⁶⁵ At a broader level, contractual principles could be shaped so as to remove incentives to behave inefficiently, as when it was recognised that claims for anticipatory breach of contract could be brought before performance was due.⁶⁶

Lobban is sceptical about these influences, stating at the outset that ideas about free competition and exchange were ‘not the driving force that led lawyers to rethink their subject’. Judges are seen as having made mistakes about what commercial people expected,⁶⁷ or as claiming that some legal matter was important to commercial people when, in reality, they were indifferent to it.⁶⁸ The economic ideas are seen as peripheral, with ‘freedom of contract’ language confined to specific political contexts,⁶⁹ and classical economics being both uninformative about matters of legal doctrine and under heavy attack by the 1880s.⁷⁰ On the other hand, Lobban goes on to say that ‘judges were also citizens, aware of the needs of the social, economic and political communities around them’.⁷¹ This qualification is crucial, because nineteenth-century judges were very well placed to understand the needs of the commercial community. Some of them had direct commercial experience; others had had extensive commercial practices at the Bar; special juries (consisting of merchants, bankers and freeholders) were still common.⁷² Commercial disapproval of decisions did not inevitably indicate that a mistake had been made – different commercial sectors might view results differently; indeed, there might be regional variations

⁶³Vol.12, 303.

⁶⁴Vol.12, 380–381.

⁶⁵*Randall v Newson* (1877) LR 2 QBD 102, at 109 (per Brett JA), discussed at vol.12, 483.

⁶⁶*Hochster v de la Tour* (1852) 2 E. & B. 678, discussed at vol.12, 500–502.

⁶⁷E.g., vol.12, 435 (commercial people ‘exasperated’ by rules on mistake), 461–462 (mercantile community ‘soon up in arms’ at the decision in *Kingsford v Merry* (1856) 1 H. & N. 503; (1856) 11 Exch. 577).

⁶⁸Vol.12, 387 (on the effect of *Foakes v Beer* (1884) 9 App. Cas. 605).

⁶⁹Vol.12, 298.

⁷⁰Vol.12, 299.

⁷¹Vol.12, 300.

⁷²James Oldham, ‘Special Juries in England: Nineteenth Century Usage and Reform’, 8 *Journal of Legal History* (1987), 148.

within the same sector.⁷³ Nor should we read too much into the lack of commercial protest over a decision allegedly contrary to commercial expectations. After all, businessmen were generally disengaged from legal detail,⁷⁴ but, whether they realised it or not, certain rules were a trap for the unwary, and, as such, an obstacle to rational commercial dealing.⁷⁵

Perhaps most importantly, by underplaying the importance of judicial perceptions of commercial expectations, there is a risk of neglecting the ideological driving force behind changes in contract law. As Karl Llewellyn pointed out,⁷⁶ what judges understand by commercial expectations draws on an idealised picture of how contracts operate. That picture, inevitably, contains both descriptive and normative elements, including economic assumptions and moral ideas. These values driving development are often under the surface, and may be subconscious. But they are crucial. Perhaps the next task, now that we have such a reliable and detailed map of what changed and when, will be to explore the ideologies that lay behind those changes.⁷⁷

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VIII. TORT

Lobban's history of tort⁷⁸ contains a similar wealth of detail and scholarship. As with the section on contract, three general themes can be highlighted.

First is the role of statute. Statute had virtually no role in the development of contract law, but statutory regulation sometimes colonised and often operated alongside central areas of tort law. Perhaps surprisingly, the statutory materials made little impact on common law principles. The best illustration is workmen's compensation. The system of employers' strict liability for workplace accidents, introduced in 1897, had the potential to call into question fundamental tenets of tort law (such as the central role of fault and the assumption that damages should compensate for all loss). But neither courts nor commentators sought to explore these possibilities. As Pollock put it, cases on workmen's compensation 'throw no light on any principle of the law of torts, the right to compensation being founded on accident simply, not on negligence'.⁷⁹ This rigid view of the nature of tort law would continue to shape its development until the 1970s, when scholars, led by Patrick Atiyah, started to appreciate how much tort law might learn from compensation systems.⁸⁰

⁷³R.B. Ferguson, 'Commercial Expectations and the Guarantee of the Law: Sales Transactions in Mid-Nineteenth Century England', in Gerry R. Rubin and David Sugarman, eds., *Law, Economy and Society: essays in the history of English law 1750–1914*, Oxford, 1984, 192.

⁷⁴Steve Hedley, 'The "Needs of Commercial Litigants" in Nineteenth and Twentieth Century Contract Law', 18 *Journal of Legal History* (1997), 85.

⁷⁵E.g. Statute of Frauds 1677, the subject of fierce criticism in James Fitzjames Stephen and Frederick Pollock, 'Section Seventeen of the Statute of Frauds', 1 *Law Quarterly Review* (1885), 1.

⁷⁶K.N. Llewellyn, 'On Warranty of Quality and Society', 36 *Columbia Law Review* (1936), 699.

⁷⁷For a similar analysis undertaken for modern contract law see John N. Adams and Roger Brownsword, 'The Ideologies of Contract Law', 7 *Legal Studies* (1987), 205.

⁷⁸Vol. 12, pt 4.

⁷⁹Sir Frederick Pollock, *The Law of Torts*, 10th ed., London, 1916, at 114.

⁸⁰P.S. Atiyah, *Accidents, Compensation and the Law*, London, 1970.

Second, the influence of academic authors was rather different to their influence in contract. There was no stock of civil law writing on delict that could be easily transposed to the English law of torts, and, therefore, no obvious theoretical model for writers on English law to borrow. For most authors the lack of theoretical framework encouraged caution. The exception was Pollock, who advocated wide general theories of fault-based liability, often prompted by Oliver Wendell Holmes's parallel investigations into the basis of tortious liability in the United States. Here, again, there is a contrast with contract. Whereas American writers contributed extensively to English doctrinal development in contract through their influence on English writers, in tort Holmes would seem to be the sole influential American. Nor, unlike in contract, was Pollock's theorising particularly successful. His general theory of liability for economic harm was rejected almost immediately. His general theory of negligence fared slightly better, but it can hardly be said to have 'ultimately triumph[ed]'⁸¹ in *Donoghue v Stevenson*.⁸² There, of the three majority speeches, only Lord Atkin endorsed the general duty theory; Lord Macmillan (also in the majority) adopted the category-based, more traditional approach. As the twentieth century unfolded, the general theory of negligence, such as it was, would prove unsustainable, with special rules emerging for omissions, psychiatric injury, pure economic loss and public authorities.

A third theme is judicial method. Here Lobban seems to allow a greater role for policy than was the case for contract. For instance, implied terms in vicarious liability cases are described as 'judicial policy choices over where liability should fall',⁸³ and judges are seen as having to act as policy-makers. Some of the factors informing those policy choices also come through. For instance, there was a judicial tendency to see vicarious liability questions 'from the perspective of the small entrepreneur or householder', and a consequent reluctance to develop the law in a way that might be unsuitable for such individuals.⁸⁴ Judges are also portrayed as being connected to the wider world: developments in occupiers' liability, for instance, are said to be prompted by 'growing sensitivity to the nature of childhood',⁸⁵ although few of the judgments could be accused of sentimentality.

Having traced the momentous developments in contract and tort given in this volume, readers may be tempted to generalise about why the law changed as it did, when it did. Given that virtually all the developments were through the common law, that question becomes a question about judicial methods: what prompted the judges to create these new principles at this time? No general explanation is offered. Indeed, the general theme seems to be that general theories about the influence of matters such as economics and social class should be rejected for a variety of reasons, including lack of evidence. There is a brief suggestion that judges may have been pursuing corrective justice,⁸⁶ but there seems to be just as little evidence of that as there is for the other possibilities already rejected.

⁸¹Vol.12, 944, repeated at 956.

⁸²[1932] AC 562.

⁸³Vol.12, 897.

⁸⁴Vol.12, 894.

⁸⁵Vol.12, 981.

⁸⁶Vol.12, 887.

The emphasis here, then, is internal to the legal system because the internal perspective is seen as what drove legal development. ‘The most admired and most influential judges’, Lobban asserts, ‘were those who kept their political views quiet, but whose knowledge of and enthusiasm for legal doctrine was considerable.’⁸⁷ But that does not quite go far enough. Knowledge of and enthusiasm for doctrine could not, of themselves, induce change; indeed, they might be more likely to cause stagnation. As the hundreds of cases discussed demonstrate, the appetite to alter the law was not widely shared; change could turn on who the judge (or panel of judges) was. Lord Esher MR in tort and Turner LJ in contract seem to have been more likely than most to find remedies for deserving claimants, but many innovations (including theirs) were short-lived. One is left with the sense that fluctuations in legal doctrine were little more than a reflection of the random distribution of judicial innovation and judicial conservatism.

If that is right, it is a slightly disheartening picture of legal development. Indeed, ‘development’ would be the wrong word to use to describe an essentially random series of alterations. There may, however, be a way in which sense can be made of the pattern of change Lobban portrays, by drawing on the theory of legal autopoiesis.⁸⁸ The essential feature of this theory is that law is a closed system, which constantly recreates itself through recurrent operations on the results of its own previous operations. As a closed system, it is – by definition – separate from its environment. However, whilst it is operationally closed, it remains cognitively open – in other words, capable of learning from its environment. What the exact mechanism is that allows it to do so remains controversial, but the theory is particularly valuable in recognising the informal, unsystematic connection between law and its environment. Thus, it may well be correct to deny the influence of external ideas and events if the influence is presented as a systematic link; but a more subtle, nuanced connection is surely both necessary and desirable if law is not to fail in its social purpose. Nineteenth-century judges’ disagreements over whether, and how, to restate the law to apply to circumstances involving new social, economic or technological phenomena should perhaps be seen as manifesting both *internal* disagreements (flowing from the ambiguity of the materials generated by previous operations) and *external* disagreements about whether, and how, the reality to which that law would apply was truly a ‘new’ one in legal terms, from which the law was required to learn, and modify its operation.

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⁸⁷Vol.12, 886.

⁸⁸See generally, G. Teubner, R. Nobles and D. Schiff, ‘The Autonomy of Law: An Introduction to Legal Autopoiesis’, in J. Penner, D. Schiff and R. Nobles, eds., *Introduction to Jurisprudence and Legal Theory*, Oxford, 2005, 897. Two essays on legal change in G. Teubner, ed., *Autopoietic Law: a new approach to law and society*, Berlin, 1988, are particularly thought-provoking for legal historians: G. Teubner, ‘Evolution of Autopoietic Law’, at 217, and N. Luhmann, ‘Closure and Openness: On Reality in the World of Law’, at 335.

IX. CRIME

In 1784 John Donnellan was tried for murder. The indictment accused him of poisoning the victim with arsenic but at that date there was no scientific test available to prove that the victim had been poisoned at all and what evidence was available suggested that the poison used (if any) was cyanide. Yet it was unlikely that the victim, a young man of 20, had died of natural causes; Donnellan stood to profit from his death, behaved suspiciously and had the means with which to make a cyanide solution. Donnellan was convicted, and subsequently hanged, on the balance of probabilities. That we are now shocked by such a result and can no longer imagine obtaining a conviction – let alone a capital one – on a standard of proof that falls far below the rubric of ‘beyond a reasonable doubt’ is attributable to the changes in the criminal justice system that took place in the period covered by this work. Between 1820 and 1914 the landscape of the criminal justice system underwent profound changes – more perhaps than in any similar period either before or since.

The most visible driver of these changes was the creation of the new police.⁸⁹ However their impact can easily be overstated since there were rather more similarities between the old and new than is often recognised. Early policemen were unskilled and uneducated men with little in the way of training; they were not noticeably more competent than their predecessors. We know that their role was initially very limited and that judges were rightly sceptical of evidence produced as a result of their interrogation.⁹⁰ The invention of the detective service is more suggestive of increased effectiveness yet depictions of police detectives (and the associated invention of the socially-superior amateur sleuth) in popular literature well into the twentieth century reflect a genuine belief that however worthy he may have been, Plod in plain clothes was an unimaginative individual, unable to deal with any but the most straightforward of cases.⁹¹ I suspect that we confuse the impact of the police with wider changes in society and increasing expectations of orderliness and am not as convinced as Smith seems to be that cause and effect can be identified quite so easily. Policing perhaps occupies a more complex social role than Smith acknowledges in that it can both reflect and shape the collective values that it seeks to enforce.⁹²

Perhaps the second most notable set of changes in this period flowed from the increasing lawyerisation of the trial and consequent embedding of adversarialism, although, as Smith notes, this too can be overstated: about half of felony defendants in trials heard at quarter sessions had no defence lawyer.⁹³ Nor was this surprising, for in the nineteenth as in earlier centuries there was little in the way of law to argue about

⁸⁹Vol.13, pt 1, ch.2.

⁹⁰Vol.13, 94–100.

⁹¹The first gentleman detective is commonly held to be C. Auguste Dupin who appeared in Edgar Allan Poe's *Murders in the rue Morgue* in 1841; Franklin Blake (Wilkie Collins, *The Moonstone*, London, 1868) is another early example of the gifted amateur. The genre took off with the publication of the first Sherlock Holmes story in 1887 and remained popular until the second half of the twentieth century.

⁹²Vol.13, 43, 46–48.

⁹³Vol.13, 80.

in criminal cases; pleading the general rather than a special issue was the norm. When lawyers did get involved they were ready and willing to challenge the complacency that allowed flagrant errors in indictments (such as charging Donellan with poisoning by arsenic instead of cyanide) to be ignored by judge and jury. Lawyerisation encouraged greater standardisation of legal practices, including the evolution of the law of evidence. Nevertheless the exercise of discretion, although perhaps clothed in newer forms, remained central to the operation of the criminal justice system.⁹⁴

Changes in trial practice were not just attributable to the presence of lawyers for the defence. Prosecution practices were also evolving. Just when did prosecution move from the private to the public sphere? In other words, when did it become common practice for prosecutions to be initiated by the police and paid for by public funds? As Smith suggests, the best we can do at the moment is to accept that the process was patchy.⁹⁵ This is an area that is ripe for further research, as is the relationship between criminal justice as practised in courts presided over by judges and those, especially petty sessions, presided over by lay magistrates. The increase in summary jurisdiction, already so marked in the eighteenth century, continued apace in the nineteenth, but has as yet received little attention from historians. Records of petty sessions survive for a number of areas and even where they do not, newspaper accounts can supply much of the deficiency.

Interestingly Smith's concept of a history of the laws also embraces a discussion of the development of legal literature, law-making and penal policy. Indeed so comprehensive is the coverage that it is difficult to find any aspect of the criminal justice system that is omitted. One might carp on the one hand about the lack of engagement with critical legal theory and on the other about specific omissions. As Smith notes, the criminalisation of incest in 1908⁹⁶ resulted from pressure to protect young girls from their fathers; it might therefore have been worth mentioning that one of the earliest convictions was for incest between adult siblings.⁹⁷ The choice of 1914 as an end date is also an interesting one. In the case of criminal justice I would have expected to see some leeway; specifically a consideration of the background and evolution of the dialogue that led to the Indictments Act 1915, which came into force in 1916. We learn elsewhere in the volume that major statutory changes to the criminal law were effectively attempts to codify and that there was an '[a]bsence of innovative, new law'.⁹⁸ But the Indictments Act 1915 *was* an innovation, one that swept away centuries of common law precedent over the format of indictments. Whilst there is certainly a case to be made that the Indictments Act 1915 marks the beginning of a new phase of criminal justice this should not be allowed to disguise the extent to which it was also the culmination of the developments of the preceding century, especially in relation to the challenges posed by the lawyerisation of the trial process. Yet so monumental is

⁹⁴Vol.13, 73, 83–88.

⁹⁵Vol.13, 63–67.

⁹⁶8 Edw. VII, c.45.

⁹⁷William Henry Ball and his sister Edith Lilian Ball were tried and convicted in October 1910. Their case also produced the first appeal to the House of Lords under the Criminal Appeal Act 1907 (7 Edw. VII, c.23), *The Times* 30 Nov. and 16 Dec. 1910, 17 Jan. 1911.

⁹⁸Vol.13, 216.

the achievement that this account of the development of the criminal law provides that it seems churlish to concentrate on blemishes rather than to admire the depth of scholarship that underpins it. Social as well as legal historians will have cause to be grateful to Smith and his colleagues for many years to come.

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X. FAMILY

William Cornish observes that nineteenth-century lawyers ‘did not speak of “family law”, but rather of the law relating to husband and wife, to children, to domestic relations and so forth’,⁹⁹ and so he has chosen to place his discussion of these topics under the heading ‘Law of Persons: Family and Other Relationships’. But while the terminology adopted is that used by contemporaries, the topics covered – family authority, property, marriage, divorce, domestic violence, the care of children – reflect the interests of modern family lawyers rather than the preoccupations of their Victorian forebears.¹⁰⁰ Victorian texts dealing with the law of husband and wife had a rather different focus, dealing rather with intact relationships and the legal consequences that flowed from the marital relation. This reflected the realities of Victorian family life, since divorce affected only a tiny minority of individuals. A greater number had resort to separations in the magistrates’ courts, but the textbooks of late-Victorian England were not written for them. A history of the laws affecting families in the Victorian period that reflected the priorities of Victorian lawyers would look very different, not least in encompassing relationships with servants who formed such a significant part of domestic life in the period.¹⁰¹

History, of course, reflects the time that it is written as much as the time it is written about. One of the accepted truths of modern histories of the Victorian period is that it was a period of patriarchal dominance. But the disadvantages experienced by women are occasionally overstated, here as elsewhere. It was true that a wife who lived apart from her husband could be ordered by an ecclesiastical court to return to the marital home, but the same remedy, that of restitution of conjugal rights, lay against a deserting husband, and either spouse could be imprisoned for failing to comply, at least before the matrimonial difficulties of the Weldons prompted a change in the law.¹⁰² It is good, however, that the oft-stated belief that the law offered no assistance to the victims of domestic violence before Frances Power Cobbe highlighted their plight is here shown to be erroneous: violent men might be required to keep the peace or be charged with criminal assault.¹⁰³

⁹⁹Vol.13, 724.

¹⁰⁰See e.g. R. Probert, ‘Family Law: A Modern Concept?’ [2004] *Family Law*, 901.

¹⁰¹And indeed contemporary texts on ‘the law of domestic relations’ did indeed include sections on the legal relationship between master and servant: see, e.g., W.P. Eversley, *The Law of Domestic Relations*, London, 1885. On the importance of servants in the Victorian household see, e.g., Pamela Horn, *The Rise and Fall of the Victorian Servant*, Dublin, 1975.

¹⁰²See further Stephen Cretney, *Family Law in the Twentieth Century: a history*, Oxford, 2003, 144–145.

¹⁰³Vol.13, 796–797.

The autocratic father similarly looms large in many accounts of Victorian England, although research has shown how many Victorians were more playful than their ponderous reputation might suggest. Chapter 5 perhaps underplays the extent to which welfare considerations played a part even in disputes between parents: reference was certainly made to paternal authority, but, significantly, it was deemed to be in the best interests of children that the father exercised authority.¹⁰⁴ This interpretation of 'best interests' should perhaps make modern judges scrutinise current interpretations of the welfare principle more carefully, lest they expose themselves to the censure of future generations. Some cases, by contrast, may reach the right decision for the wrong reasons. From a modern liberal perspective it seems wrong that Shelley should be deprived of the care of his children on account of his atheism,¹⁰⁵ but from a child welfare perspective one can only be thankful for the decision, given his irresponsibility as both a husband and a father.¹⁰⁶

Legal history in addition tends to reflect the division of legal study into discrete subjects: the history of the family is dealt with separately from the history of property or criminal law. Yet developments in the law relating to families may well have been influenced by reforms in other areas and vice versa. Even within the narrower subject of law and family relationships, each individual topic has its own history and chronology. To give just one example, domestic law on the prohibited degrees of relationship for the purposes of marriage is dealt with in a separate chapter from the way in which the law treated those who attempted to evade those restrictions by marrying overseas.

Connections between law and literature could also have been explored in greater depth. Some of the novels of the period could have provided an interesting link between the role of the family and the issues of insanity, discussed in chapter 6 of this part. Issues of legitimacy, marriage, property, husbandly authority and both real and alleged insanity combined in Wilkie Collins's *The Woman in White* (1859–60), while bigamy and the mad/bad distinction was at the heart of Mary Elizabeth Braddon's *Lady Audley's Secret* (1862).

Any overview of the period has to be selective, although one might wonder why more pages are devoted to the discussion of the Clandestine Marriages Act 1753 than to the impact of the Marriage Act 1836 (and whether Wickham eloped with a Louisa as well as a Lydia!¹⁰⁷). Cornish endorses my own findings that there is no evidence of any informal marriage practices surviving into this period (for the simple reason that they did not exist); the Victorians may, however, have invented a few 'traditions' of their own, in this as in other spheres. Wife-sale, by contrast, did leave its mark in both informal and formal sources,¹⁰⁸ although the fact that individuals resorted to an informal method of ending a marriage is no indication of the formality with which they entered the institution. And the key reform of family law in the nineteenth century

¹⁰⁴ *Re Agar-Ellis* (1883) 24 Ch. D. 334.

¹⁰⁵ See *Shelley v Westbrooke* (1817) Jac. 266.

¹⁰⁶ See Janet M. Todd, *Death and the Maidens*, London, 2007.

¹⁰⁷ See vol. 13, 754.

¹⁰⁸ See generally, Samuel Pyeatt Menefee, *Wives for Sale: an ethnographic study of British popular divorce*, Oxford, 1981.

– the Divorce and Matrimonial Causes Act 1857 – did not render such informal methods of separation otiose, being limited in its scope both geographically and legally. But it did nonetheless effect a significant change, particularly for women, as Cornish makes clear.

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XI. INTELLECTUAL PROPERTY

While few legal academics would doubt the importance of history to a proper understanding of contemporary law, a special claim can be made for its importance to intellectual property (IP). One reason, which emerges clearly from part 5 of volume 13, is the uncertainty regarding IP's legal and normative bases, and the impact of that uncertainty on substantive law.¹⁰⁹ In an era of increasing European and international harmonisation, this uncertainty and its impact are likely to persist,¹¹⁰ raising a further reason for history's importance: its relevance to principles of treaty interpretation, as a means of revealing the *telos* of the non-domestic sources which increasingly govern domestic IP.¹¹¹ Given this, Cornish's beautifully written and characteristically erudite work ought to attract as much attention from contemporary lawyers as from legal historians.

In six chapters, Cornish offers a history of several bodies of English law and doctrine with respect to intellectual property and related non-proprietary fields. Of these, it is the classic IP systems of copyright and patents which he considers at greatest length.

1. Copyright

Cornish's history of copyright is a history of two ideas: 'the modern idea of [statutory] copyright'¹¹² established by the Statute of Anne 1710, and the idea of literary property ('common law copyright') established by the seventeenth-century Chancery courts.¹¹³ The former denotes a short-term property right of authors to exclude others from reprinting their published 'books', while the latter denotes a perpetual property right of authors to exclude others from reprinting the products of their

¹⁰⁹A theme of vol.13, pt 5 – and particularly chapters 2 ('Copyright') and 3 ('Patents for Invention') – is the use of history in IP law and policy arguments, including its misuse 'in the service of polemic' (vol.13, 971).

¹¹⁰For a recent example see *IceTV Pty Ltd v Nine Network Pty Ltd* [2009] HCA 14, at [24] and [71], discussed in J. Pila, 'An Australian Copyright Revolution and its Relevance for UK Jurisprudence: *IceTV* in the Light of *Infopaq v Danske*', 10 *Oxford University Commonwealth Law Journal* (2010), 77–93, at 82, 90.

¹¹¹See Vienna Convention on the Law of Treaties (Vienna, 23 May 1969, UNTS 115, 321), Arts. 31–33. On the implications for domestic (UK) law see, e.g., *SAS Institute Inc. v World Programming Ltd* [2010] EWHC 1829 (Ch.), 212–217, 226, 310 (regarding copyright); *CFPH's Application* [2005] EWHC 1589, 26–27 (regarding patents).

¹¹²Vol.13, 879.

¹¹³Cornish refers (at vol.13, 880) to the 'emerging [evidence] that in the later seventeenth century, Chancery had regularly issued interim injunctions against book pirates, thus providing copyright owners with a civil cause of action which survived from then on', and which 'would eventually be established as [having as its basis] a common law right for damages, which equity supported by injunction'.

creative labours. His account culminates in the Copyright Act 1911, in which common law copyright was expressly abrogated, and statutory copyright redefined as an extended (life plus fifty years) property right covering various material uses of authorial and other works. It can be read as supporting four central themes.

The first theme is the ambivalence and incoherence of early statutory copyright as a private right derived from individual acts of authorship but defined with publishers and the market in mind.¹¹⁴ The second is the contention regarding copyright's legal and normative heritage – did it derive from statute or the common law, did it exist to benefit the public or individual authors, and was it really property or a liability rule? – and its impact on law- and policy-makers.¹¹⁵ Third, there is the influence of internationalisation and British diplomacy, and of legislative and executive pragmatism in general. In Cornish's account, the Statute of Anne was an essentially pragmatic initiative, introduced in response to the realities of the seventeenth-century book trade as an anchor for book production and marketing. So too the first (1814) extension of copyright's term (from a renewable fourteen years to twenty-eight years or the author's life), which he describes as an attempt to deflect lobbying against the statute's deposit requirements. And, finally, the extension of artistic copyright to photographs, the limited response to requests for authors' moral rights, the introduction of protection for dramatic works, and British assurances to the United States that first publication in Britain would confer an entitlement to British copyright, all of which are presented as pragmatic reforms and acts.

In contrast is the fourth and final theme, which is the judicial concern with moral propriety. The most obvious evidence of this is the emergence of common law copyright itself: a fluid idea informed by the courts' recognition of 'the basic justice of the cause' of authorial rights.¹¹⁶ There is also the manner in which it came about, whereby the Chancery courts exploited the imprecise relationship between the nature and legal basis of injunctive remedies in order 'to give rein to their considerable sense of moral propriety' by restraining book piracy.¹¹⁷

Not surprisingly, the judicial concern with morality influenced the interpretation of statutory copyright as well. Thus, the nineteenth-century courts treated infringement as a matter for their discretion, determinable having regard to their impression of a case, and the merits of the parties' competing (private) claims.¹¹⁸ Less important, it seems, were the interests of the public, which appear to have been recognised in only one type of case – dealings for the purpose of reporting news – and then as something of a judicial afterthought.¹¹⁹ Among other things, this challenges the

¹¹⁴As Cornish remarks (at vol.13, 887): 'The notion of a right that derives from an author's creation, but advantages the publishers who risk capital for returns on their publications, has an inherent ambiguity.'

¹¹⁵Examples of this impact include the eighteenth-century literary property cases, the nineteenth-century foreign entitlement cases, the pre-1842 parliamentary debates on copyright's term, and the deliberations of the Royal Commission on Copyright 1876–78, each of which Cornish discusses.

¹¹⁶Vol.13, 897, 882; cf. 884.

¹¹⁷Vol.13, 884.

¹¹⁸Vol.13, 902–906, especially at 903 (regarding the factors considered by the courts when determining infringement); cf. 904.

¹¹⁹Vol.13, 906. Important in this context is the uncertainty over whether the 'categories of defence' which nineteenth-century courts recognised '[b]y way of counterbalance' to the expanding scope of infringement 'were just ways of showing whether the taking was substantial enough to count as infringement or whether they had a dimension of their own' (ibid., at 905).

popular understanding of British copyright as having historically existed for the benefit of the public,¹²⁰ and the desirability of a flexible common law (discretionary) approach, which Cornish seems on the whole to embrace.¹²¹ It also raises important substantive, methodological and constitutional questions regarding the importance of considerations of public policy and moral propriety, and who is responsible for determining each. At a time when the jurisdiction of the UK courts is in decline, due in part to the internationalism of individual British judges,¹²² the importance of these issues is difficult to overstate.

2. *Patents*

The UK patent system shares certain historical, legal and normative aspects with copyright. For example, it emerged from a concern with protecting trade, evolved from principles of common law, and sought to encourage creation and/or protect creators' rights. Nonetheless, it differs from copyright in the central respect of conferring a near-monopoly right rather than a copyright, historically at the discretion of the Crown. Among other things, this explains why the earliest patent cases involved complaints against the Crown about its patent grants, in contrast to the earliest copyright cases, which involved complaints against individuals for unauthorised copying of their works. It also accounts for the administrative and formal aspects of the patent system, and for its root potentialities in both fostering new technologies and creating monopolies over production, both of which Cornish emphasises.¹²³

As for his history of copyright, Cornish's history of the English patent system is a learned and extremely measured one, setting the legal aspects carefully against the administrative. If there is a hero in his story it is (again) the common law courts, which is understandable after nearly forty years of European Patent Office decision-making. On the other hand, he is arguably *too* uncritical, as demonstrated by the following account.

As Cornish makes clear, since at least the eighteenth century, the 'social contract' theory of patents had received widespread acceptance and support of the courts. According to that theory, a patent represents a contract between the inventor and State involving the disclosure of a new and useful invention in exchange for a temporary monopoly grant. The acceptance of this theory in English law is apparent from the centrality of the specification required of patentees, as the means by which the 'consideration' for a patent was proffered, and its sufficiency for monopoly protection decided.

Closely related to the 'social contract' theory was the acceptance of a public benefit argument for patents, notwithstanding ambivalence regarding the 'public

¹²⁰As does the evidence of a pre-1710 Chancery practice of issuing injunctions to prevent book piracy; see n.113, above.

¹²¹See, for example, his description of nineteenth-century English judges (at vol.13, 907) as having 'filled out the capacious body of the copyright idea so as to make it a useful basis for the often harrowing, often aggressive, business of taking publishing risks'.

¹²²See, for example, the judgment of Arnold J in *SAS Institute Inc. v World Programming Ltd* [2010] EWHC 1829.

¹²³Vol.13, 931–932.

benefit'. Indeed, while the original justification for the English patent system was accepted as being an industrial one – patents supported industrial growth by encouraging technological innovation – the connection between the system and benefit was ambivalent. For example, it was accepted early on that establishing new technologies would not necessarily generate wealth and social well-being. In addition, however, and moving beyond Cornish's explicit analysis, the system's connection to industry weakened over time, due perhaps to a focus on the specification, and the 'freedom of patents' philosophy which it, and the 'social contract' theory, encouraged. Hence the courts' failure convincingly to explain the exclusion from protection of medical and other non-industrial methods.¹²⁴

To be sure, the detachment of the system from its industrial roots can be seen as a casualty of its formal and administrative requirements. As Cornish explains, before 1883 there was no pre-grant legal scrutiny of inventions unless a competitor challenged the bill for a patent, and such was the administrative 'maze' of the system that its negotiation required the professional services of a patent agent. On the other hand, pre-grant administrative scrutiny was overwhelmed by a concern with formalities.¹²⁵ In combination, these factors meant that many of the patents being granted were of uncertain if not dubious legal validity; a problem which dominated initiatives for reform. Finally, just as inventors depended on the services of a patent agent, so the system in general depended on competitors to ensure the sufficiency of the 'consideration' which a patentee provided, by lodging caveats, challenging bills and searching for prior art, all of which Cornish carefully details.

Still, the courts might bear greater responsibility than Cornish suggests. For example, there is the evidence of their unconcern with the adequacy of the consideration provided for a patent, and the proportionality of the resulting monopoly rights. As Cornish notes, before the twentieth century '[i]t was simply not asked' whether it was right to give a person a monopoly over a product on the basis of his discovery of a first practical use for it and, in particular, whether doing so 'satisfied the legal requirement for the patentee to supply full consideration for the grant'.¹²⁶ It seems reasonable to explain this with reference to the 'freedom of patents' philosophy above, by which any new and inventive practical art was treated as *sufficient*, without regard to its *adequacy* for a patent as such, or to its proper conception *qua* (patentable) invention. The result challenges Cornish's description of the courts as having 'insisted on public accountability',¹²⁷ and 'tackled with a will from the late eighteenth century

¹²⁴Cornish describes the patentability of non-manufacturing methods as having been 'open to debate', without distinguishing methods directed to advancing an industrial/non-industrial art, such as (for the latter) methods of medical treatment and reducing the risk of fire, which have long caused the English courts difficulties. See vol.13, 946, 968–969.

¹²⁵The problem was endemic, as Cornish remarks (at vol.13, 942): 'In this maze, consideration of the merits of the supposed invention became submerged beneath formalities that called for the payment of fees and "tips".'

¹²⁶Vol.13, 968. Note that the nineteenth-century and early-twentieth-century courts did ask this question where the discovery supporting the grant was of a first method of *making* rather than *using* the product; see J. Pila, 'Chemical Products and Proportionate Patents Before and After *Generics v Lundbeck*', 20 *King's College Law Journal* (2009), 489–526, at 497–500.

¹²⁷Vol.13, 943 (referring to eighteenth-century courts).

onwards' the 'ultimate issue for any patenting regime': how to deal post-grant with obstructively cast claims,¹²⁸ and ensure the proportionality of protection required having regard to the invention's contribution to the art.¹²⁹

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XII. CONCLUSION

Our main aim in writing this review has been to indicate the range of topics covered in the three volumes and to pick out some of the themes that emerge from their different parts. Few readers seem likely to read the entire work from beginning to end, but, as we hope we have indicated, there is much to be gained from a focused study of the authors' work by those with an interest in particular subjects. It seems appropriate, however, to conclude with an observation about the whole project and the history of English law from 1820 to 1914. The point has been made already that English law underwent great changes during this period, but perhaps it has been insufficiently emphasised here that the period was also marked by powerful continuities with the past. Lawmakers of the period, like those of every period, worked with the materials that lay to hand, and it is only by understanding their conceptual and institutional starting points that one can understand where they finished up, and how and why they got there. And that, of course, is the value of legal history, and the reason why these superb volumes should now sit on every lawyer's shelf.

CHARLES MITCHELL and CHARLOTTE SMITH

¹²⁸Vol.13, 967.

¹²⁹Vol.13, 945, where Cornish refers to the early-nineteenth-century courts' insistence 'that patents were dependent on the 'consideration' of a sufficient description and publication of its content'.